

s. 11 (1).

Refusal to accept motion

(11.1) The Board shall refuse to accept for filing a motion under subsection (11), if the tenant has not complied with all the requirements of that subsection. 2017, c. 13, s. 15 (1).

Exception

(12) Subsection (11) does not apply if the tenant has previously made a motion under that subsection during the period of the tenant's tenancy agreement with the landlord. 2006, c. 17, s. 74 (12).

Motion under subs. (11) stays eviction order

(13) An order under subsection (3) is stayed when a motion under subsection (11) is accepted for filing by the Board and shall not be enforced under this Act or as an order of the Superior Court of Justice during the stay. 2006, c. 17, s. 74 (13); 2017, c. 13, s. 15 (2).

Application of subs. (13)

(13.1) For greater certainty, subsection (13) applies only if the affidavit filed by the tenant in support of the motion under subsection (11) complies with all the requirements of that subsection. 2017, c. 13, s. 15 (3).

Order of Board

(14) Subject to subsection (15), if a tenant makes a motion under subsection (11), the Board shall, after a hearing,

- (a) make an order declaring the order under subsection (3) to be void, if the tenant has paid the amounts set out in subsection (11); or
- (b) make an order lifting the stay of the order under subsection (3), if the tenant has not paid the amounts set out in subsection (11). 2006, c. 17, s. 74 (14).

Enforcement costs

(15) If, on a motion under subsection (11), the Board determines that the landlord has paid any non-refundable amount under the *Administration of Justice Act* for the

purpose of enforcing the order under subsection (3), the Board shall specify that amount in the order made under clause (14) (a) and shall provide in the order that it is not effective unless,

- (a) the tenant pays the specified amount into the Board by a date specified in the order; and
- (b) an employee in the Board issues a notice under subsection (16). 2006, c. 17, s. 74 (15); 2013, c. 3, s. 27 (2).

Notice of payment

(16) If subsection (15) applies to an order made under clause (14) (a) and the tenant pays the amount specified in the order into the Board by the date specified in the order, an employee in the Board shall issue a notice to the tenant and the landlord acknowledging that the eviction order is void. 2006, c. 17, s. 74 (16); 2013, c. 3, s. 27 (3).

Failure to pay

(17) If subsection (15) applies to an order made under clause (14) (a) and the tenant does not pay the amount specified in the order into the Board by the date specified in the order, the stay of the order under subsection (3) ceases to apply and the order may be enforced. 2006, c. 17, s. 74 (17).

Order for payment

(18) If the Board makes an order under clause (14) (b), the Board may make an order that the tenant pay to the landlord any non-refundable amount paid by the landlord under the *Administration of Justice Act* for the purpose of enforcing the order under subsection (3). 2006, c. 17, s. 74 (18).

Transition, motions under subs. (11)

(19) This section, as it reads immediately before the day the *Rental Fairness Act, 2017* receives Royal Assent, continues to apply with respect to motions under subsection (11) that are received by the Board before that day. 2017, c. 13, s. 15 (4).

▼ Section Amendments with date in force (d/m/y)

Illegal act

75 The Board may issue an order terminating a tenancy and evicting a tenant in an application under section 69 based on a notice of termination under section 61 whether or not the tenant or other person has been convicted of an offence relating to an illegal act, trade, business or occupation. 2006, c. 17, s. 75; 2013, c. 3, s. 28.

▼ Section Amendments with date in force (d/m/y)

Application based on animals

76 (1) If an application based on a notice of termination under section 64, 65 or 66 is grounded on the presence, control or behaviour of an animal in or about the residential complex, the Board shall not make an order terminating the tenancy and evicting the tenant without being satisfied that the tenant is keeping an animal and that,

- (a) subject to subsection (2), the past behaviour of an animal of that species has substantially interfered with the reasonable enjoyment of the residential complex for all usual purposes by the landlord or other tenants;
- (b) subject to subsection (3), the presence of an animal of that species has caused the landlord or another tenant to suffer a serious allergic reaction; or
- (c) the presence of an animal of that species or breed is inherently dangerous to the safety of the landlord or the other tenants. 2006, c. 17, s. 76 (1).

Same

(2) The Board shall not make an order terminating the tenancy and evicting the tenant relying on clause (1) (a) if it is satisfied that the animal kept by the tenant did not cause or contribute to the substantial interference. 2006, c. 17, s. 76 (2).

Same

(3) The Board shall not make an order terminating the tenancy and evicting the tenant relying on clause (1) (b) if it is satisfied that the animal kept by the tenant did not cause or contribute to the allergic reaction. 2006, c. 17, s. 76 (3).

APPLICATION BY LANDLORD – NO NOTICE OF TERMINATION

Agreement to terminate, tenant's notice

77 (1) A landlord may, without notice to the tenant, apply to the Board for an order terminating a tenancy and evicting the tenant if,

- (a) the landlord and tenant have entered into an agreement to terminate the tenancy; or
- (b) the tenant has given the landlord notice of termination of the tenancy. 2006, c. 17, s. 77 (1).

Same

(2) The landlord shall include with the application an affidavit verifying the agreement or notice of termination, as the case may be. 2006, c. 17, s. 77 (2).

Same

(3) An application under subsection (1) shall not be made later than 30 days after the termination date specified in the agreement or notice. 2006, c. 17, s. 77 (3).

Order

(4) On receipt of the application, the Board may make an order terminating the tenancy and evicting the tenant. 2006, c. 17, s. 77 (4).

Same

(5) An order under subsection (4) shall be effective not earlier than,

- (a) the date specified in the agreement, in the case of an application under clause (1) (a); or
- (b) the termination date set out in the notice, in the case of an application under clause (1) (b). 2006, c. 17, s. 77 (5).

Motion to set aside order

(6) The respondent may make a motion to the Board, on notice to the applicant, to have the order under subsection (4) set aside within 10 days after the order is issued. 2006, c. 17, s. 77 (6).

Motion stays order

(7) An order under subsection (4) is stayed when a motion to have the order set aside is received by the Board and shall not be enforced under this Act or as an order of the Superior Court of Justice during the stay. 2006, c. 17, s. 77 (7).

Order of Board

(8) If the respondent makes a motion under subsection (6), the Board shall, after a hearing,

- (a) make an order setting aside the order under subsection (4), if,
 - (i) the landlord and tenant did not enter into an agreement to terminate the tenancy, and
 - (ii) the tenant did not give the landlord notice of termination of the tenancy;
- (b) make an order setting aside the order under subsection (4), if the Board is satisfied, having regard to all the circumstances, that it would not be unfair to do so; or

Note: On a day to be named by order of the Lieutenant Governor in Council, clause 77 (8) (b) of the Act is repealed and the following substituted: (See: 2025, c. 14, Sched. 12, s. 5)

- (b) make an order setting aside the order under subsection (4), if the prescribed circumstances, conditions or tests have been satisfied; or
- (c) make an order lifting the stay of the order under subsection (4), effective immediately or on a future date specified in the order. 2006, c. 17, s. 77 (8).

▼ Section Amendments with date in force (d/m/y)

Application based on previous order, mediated settlement

78 (1) A landlord may, without notice to the tenant, apply to the Board for an order terminating a tenancy or evicting the tenant if the following criteria are satisfied:

1. The landlord previously applied to the Board for an order terminating the tenancy or evicting the tenant.
2. A settlement agreed to under section 194 or order made with respect to the previous application,

- i. imposed conditions on the tenant that, if not met by the tenant, would give rise to the same grounds for terminating the tenancy as were claimed in the previous application, and
 - ii. provided that the landlord could apply under this section if the tenant did not meet one or more of the conditions described in subparagraph i.
3. The tenant has not met one or more of the conditions described in subparagraph 2 i. 2006, c. 17, s. 78 (1); 2020, c. 16, Sched. 4, s. 15 (1).

Same

(2) The landlord shall include with the application a copy of the settlement or order and an affidavit setting out what conditions of the settlement or order have not been met and how they have not been met. 2006, c. 17, s. 78 (2).

Order for payment

(3) In an application under subsection (1), the landlord may also request that the Board make an order for payment under subsection (7) if the following criteria are satisfied:

- 1. The landlord applied for an order for the payment of arrears of rent or compensation for the repair or replacement of damaged property when the landlord made the previous application described in paragraph 1 of subsection (1).
- 2. A settlement agreed to under section 194 or order made with respect to the previous application requires the tenant to pay rent or some or all of the arrears of rent or compensation for the repair or replacement of damaged property. 2006, c. 17, s. 78 (3); 2017, c. 13, s. 16 (1); 2020, c. 16, Sched. 4, s. 15 (2).

Affidavit

(4) If the landlord makes a request under subsection (3), the affidavit included with the application under subsection (2) must also provide the following information:

- 1. If the settlement or order requires the tenant to pay some or all of the arrears of rent, the amount of any additional arrears of rent arising after the date of the settlement or order.
- 2. The amount of NSF cheque charges, if any, claimed by the landlord that were

charged by financial institutions after the date of the settlement or order in respect of cheques tendered to the landlord by or on behalf of the tenant, to the extent the landlord has not been reimbursed for the charges.

3. The amount of NSF administration charges, if any, claimed by the landlord in respect of NSF cheques tendered by or on behalf of the tenant after the date of the settlement or order, to the extent the landlord has not been reimbursed for the charges.

4. If a settlement was agreed to under section 194 with respect to the previous application,

- i. the amount of compensation for damage payable to the landlord under the terms of the settlement,
- ii. the amount of arrears of rent payable to the landlord under the terms of the settlement,
- iii. the amount of NSF cheque charges payable to the landlord under the terms of the settlement,
- iv. the amount of NSF administration charges payable to the landlord under the terms of the settlement, and
- v. the amount that the terms of the settlement required the tenant to pay to the landlord as reimbursement for the fee paid by the landlord for the application referred to in paragraph 1 of subsection (1).

5. The amount of any rent deposit, the date it was given and the last period for which interest was paid on the rent deposit.

6. The amount and date of each payment made under the terms of the settlement or order and what the payment was for. 2006, c. 17, s. 78 (4); 2017, c. 13, s. 16 (2-4); 2020, c. 16, Sched. 4, s. 15 (3).

Time for application

(5) An application under this section shall not be made later than 30 days after a failure of the tenant to meet a condition described in subparagraph 2 i of subsection (1). 2006, c. 17, s. 78 (5).

Order terminating tenancy

(6) If the Board finds that the landlord is entitled to an order under subsection (1), the Board may make an order terminating the tenancy and evicting the tenant. 2006, c. 17, s. 78 (6).

Order for arrears

(7) If an order is made under subsection (6) and the landlord makes a request under subsection (3), the Board may order the payment of the following amounts:

1. The amount of any compensation payable under section 86.
2. If the settlement or order referred to in paragraph 2 of subsection (3) requires the tenant to pay some or all of the arrears of rent, the amount of arrears of rent that arose after the date of the settlement or order.
3. Such amount as the Board may allow in respect of NSF cheque charges claimed by the landlord that were charged by financial institutions, after the date of the settlement or order referred to in paragraph 2 of subsection (3), in respect of cheques tendered by or on behalf of the tenant and for which the landlord has not been reimbursed.
4. Such amount as the Board may allow in respect of NSF administration charges claimed by the landlord that were incurred after the date of the settlement or order referred to in paragraph 2 of subsection (3) in respect of NSF cheques tendered by or on behalf of the tenant and for which the landlord has not been reimbursed, not exceeding the amount per cheque that is prescribed as a specified amount exempt from the operation of section 134.
5. If a settlement was agreed to under section 194 with respect to the previous application,
 - i. the amount of arrears of rent payable under the terms of the settlement that has not been paid,
 - i.1 the amount of compensation for damage payable under the terms of the settlement that has not been paid,
 - ii. the amount payable under the terms of the settlement in respect of NSF cheque charges that were charged by financial institutions in respect of cheques tendered by or on behalf of the tenant and for which the landlord has not been reimbursed,

iii. the amount payable under the terms of the settlement in respect of NSF administration charges for which the landlord has not been reimbursed, not exceeding the amount per cheque that is prescribed as a specified amount exempt from the operation of section 134, and

iv. the amount payable under the terms of the settlement as reimbursement for the fee paid by the landlord for the previous application, to the extent that the amount payable did not exceed that fee and to the extent that the amount payable has not been paid. 2006, c. 17, s. 78 (7); 2017, c. 13, s. 16 (5, 6); 2020, c. 16, Sched. 4, s. 15 (4).

Cancellation of previous order

(7.1) If the Board makes an order under subsection (6), the Board may,

(a) cancel a previous order referred to in paragraph 2 of subsection (3); and

(b) order the payment of any amount payable under the cancelled order that has not been paid. 2017, c. 13, s. 16 (7).

Credit for rent deposit

(8) In determining the amount payable by the tenant to the landlord, the Board shall ensure that the tenant is credited with the amount of any rent deposit and interest on the deposit that would be owing to the tenant on the termination of the tenancy. 2006, c. 17, s. 78 (8).

Motion to set aside orders

(9) The respondent may make a motion to the Board, on notice to the applicant, to have an order under subsection (6), and any order made under subsection (7) or (7.1), set aside within 10 days after the order made under subsection (6) is issued. 2006, c. 17, s. 78 (9); 2017, c. 13, s. 16 (8).

Motion stays orders

(10) When a motion under subsection (9) is received by the Board, an order under subsection (6), and any order made under subsection (7) or (7.1), are stayed and shall not be enforced under this Act or as an order of the Superior Court of Justice during the stay. 2017, c. 13, s. 16 (9).

Order of Board

(11) If the respondent makes a motion under subsection (9), the Board shall, after a hearing,

- (a) make an order setting aside the order under subsection (6), and any order made under subsection (7) or (7.1), if any of the criteria set out in subsection (1) are not satisfied;
- (b) make an order setting aside the order under subsection (6), and any order made under subsection (7) or (7.1), if the Board is satisfied, having regard to all the circumstances, that it would not be unfair to set aside the order under subsection (6); or
- (c) make an order lifting the stay of the order under subsection (6), and any order made under subsection (7) or (7.1), effective immediately or on a future date specified in the order. 2006, c. 17, s. 78 (11); 2017, c. 13, s. 16 (10).

Same

(12) In an order under clause (11) (b), the Board may amend a settlement agreed to under section 194 or an order made with respect to the previous application if it considers it appropriate to do so. 2009, c. 33, Sched. 21, s. 11 (2); 2020, c. 16, Sched. 4, s. 15 (5).

Transition

(13) This section, as it reads immediately before the day subsection 16 (11) of the *Rental Fairness Act, 2017* comes into force, continues to apply if the previous application referred to in paragraph 1 of subsection (1) is made before that day, regardless of whether the resulting settlement or order is mediated or made before, on or after that day. 2017, c. 13, s. 16 (11).

▼ Section Amendments with date in force (d/m/y)

Abandonment of rental unit

79 If a landlord believes that a tenant has abandoned a rental unit, the landlord may apply to the Board for an order terminating the tenancy. 2006, c. 17, s. 79.